

25STCV08666 25STCV08666

County: los-angeles

Division: Civil Law and Motion

Department: 731

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Case Number: 25STCV08666 Hearing Date: July 14, 2026 Dept: 731

[TENTATIVE] ORDER RE: MOTION

TO COMPEL SANCTIONS PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE § 871.26

Background Facts

Plaintiff, who brings this action

seeking restitution or replacement of a motor vehicle, brought this motion

seeking an order that compels Defendants to comply with initial disclosure

obligations and granting sanctions against Defendant pursuant to Code of Civil

Procedure section 871.26.

Defendant has filed an opposition,

which argues that this motion has been mooted by since-made disclosures, and

that sanctions should be denied because, according to Defendant, the parties

were working on settlement and put a pause on initial disclosures when

Plaintiff filed this motion.

Because no reply appears in the

record, there are no papers from Plaintiff to dispute Defendant's mootness and

good cause arguments.

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Motion to Compel

Initial Disclosures; Request for Sanctions

Plaintiff's motion seeks disclosures and sanctions from Defendant for failure to comply with its initial disclosure requirements under section 871.26.

After review, the Court DENIES Plaintiff's motion in full.

Initial-disclosure procedures exist for specific causes of action, including procedures described in Code of Civil Procedure section 871.26, subdivisions (b) and (f) to (h) for civil actions seeking restitution or replacement of a motor vehicle under Code of Civil Procedure section 871.20, et seq.

Regarding disclosures, Defendant has provided evidence of disclosures, the extent and nature of which are not addressed here. (See Opposition, Sweeney Decl., ¶¶ 4-13, Exs. A-B.) Separately, Plaintiff has failed to file a reply, for which reason the Court can accept that the issue of whether Defendant has complied with its initial disclosure obligations is moot.

As for sanctions, though Code of Civil Procedure section 871.26, subdivision (j), mandates that this Court impose sanctions for a party's failure to make initial disclosures, those sanctions can be withheld where the non-producing party shows good cause. Here, Defendant argues that the parties were engaged in settlement negotiations, for which reason Defendant was under the impression that disclosures were paused, and once Defendant received notice of motion, it made disclosures and thus brought itself into compliance with the Code. (Opposition, Sweeney Decl., ¶¶ 4-13, Exs. A-B.) Again, no reply exists to dispute this position. Sanctions consequently fail under a showing of good cause.

Plaintiffs' motion is accordingly DENIED.

Plaintiffs are ordered to give notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.